



Tel: 1-800-841-3000

**Government Employees Insurance Company**  
One GEICO Boulevard  
Fredericksburg, VA 22412-0003

## Declarations Page

This is a description of your coverage.  
Please retain for your records.

**Policy Number: 6119-07-30-10**

**Coverage Period:**

05-01-26 through 11-01-26

12:01 a.m. local time at the address of the named insured.

Date Issued: March 23, 2026

SALVATORE SCRUDATO  
160 RIVER ST APT 524  
HACKENSACK NJ 07601-6467

Email Address: sal.scrudato@gmail.com

**Named Insured**

Salvatore Scrudato  
Lisa M Scrudato

**Additional Drivers**

None

**Vehicle**

**VIN**

**Vehicle Location**

**Finance Company/  
Lienholder**

1 2023 Tesla Model 3

5YJ3E1EA6PF678222

HACKENSACK NJ 07601-6467

**Coverages\***

**Limits and/or Deductibles**

**Vehicle 1**

|                                                                   |                                     |                   |
|-------------------------------------------------------------------|-------------------------------------|-------------------|
| Bodily Injury Liability<br>Each Person/Each Occurrence            | \$100,000/\$300,000                 | \$267.94          |
| Property Damage Liability                                         | \$50,000                            | \$140.13          |
| PIP Med Only Health Primary                                       | Option U<br>\$15,000<br>\$2,500 Ded | \$52.03           |
| Uninsured & Underinsured Motorists<br>Each Person/Each Occurrence | \$100,000/\$300,000                 | \$78.88           |
| Underinsured Motorist Property Damage                             | \$50,000                            | \$1.64            |
| Comprehensive (Excluding Collision)                               | \$1,000 Ded                         | \$39.80           |
| Collision                                                         | \$1,000 Ded                         | \$456.77          |
| Emergency Road Service                                            | ERS FULL                            | \$4.98            |
| <b>Total Six Month Premium</b>                                    |                                     | <b>\$1,042.17</b> |

\*Coverage applies where a premium or \$0.00 is shown for a vehicle.

If you elect to pay your premium in installments, you may be subject to an additional fee for each installment. The fee amount will be shown on your billing statements and is subject to change.

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**Discounts**

|                                             |                 |
|---------------------------------------------|-----------------|
| <b>The total value of your discounts is</b> | <b>\$750.10</b> |
| Anti-Theft .....                            | \$6.43          |
| Passive Restraint/Air Bag .....             | \$15.76         |
| Good Driver .....                           | \$198.06        |
| Driving Experience .....                    | \$529.85        |

**The following discounts have also been applied**

|                                |          |
|--------------------------------|----------|
| Financial Responsibility ..... | Included |
|--------------------------------|----------|

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**Contract Type:** FAMILY STANDARD AUTO

**Contract Amendments:** ALL VEHICLES - A30NJ(02-21) UE112A(07-21) SIGPGCW(07-20)

**Unit Endorsements:** A115S(08-20) (VEH 1); A468NJ(07-04) (VEH 1)

**Important Policy Information**

- Please review the front and/or back of this page for your coverage and discount information.
- You are receiving a \$19.62 reduction based on your membership in Sigma Phi Epsilon Fraternity.
- A discount for successfully completing an approved Defensive Driver Course is available in New Jersey.
- You are currently carrying the Limited Tort option on your policy.
- Reminder - Physical damage coverage will not cover loss for custom options on an owned automobile, including equipment, furnishings or finishings including paint, if the existence of those options has not been previously reported to us. This reminder does NOT apply in VIRGINIA, however, in Virginia coverage is limited for custom furnishings or equipment on pick-up trucks and vans but you may purchase coverage for this equipment. Please call us at 1-800-841-3000 or visit us at geico.com if you have any questions.
- Claims incurred while an insured vehicle is being used to carry passengers for hire may not be covered by this contract. Please review the contract for a full list of exclusions and contact us if you plan to use any of your insured vehicles for this purpose.
- Please call our toll free number 1-800-841-3000 and provide us with the LIENHOLDERS name and address for your 2023 TESLA.



One GEICO Boulevard  
Fredericksburg, VA 22412-0003  
Telephone: 1-800-841-3000

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# **New Jersey Family Automobile Insurance Policy**

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Government Employees Insurance Company

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United States Government Employees

Whenever, "he", "his", "him", or "himself" appears in this policy, you may read "she", "her", "hers", or "herself".

#### AGREEMENT

We, the Company named in the Declarations attached to this policy, agree with *you*, in return for *your* payment of the premium when due, to insure *you*, subject to all the terms of this policy.

Acting in reliance on the information *you* have furnished us, we will insure *you* for the Coverages and the Coverage Limits for which a premium is shown in the Declarations.

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### SECTION I - LIABILITY COVERAGES

#### Bodily Injury Liability and Property Damage Liability

#### Your Protection Against Claims From Others

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#### DEFINITIONS

The words bolded and italicized in **Section I** of this policy are defined below.

1. **Auto business** means the business of selling, repairing, renting, leasing, brokering, servicing, storing, transporting or parking of autos.
2. **Bodily injury** means bodily injury to a person, caused by accident, including resulting sickness, disease or death. All claims for damages arising from **bodily injury** to a person from a single loss shall be considered one **bodily injury**.
3. **Civil union** means a legally recognized union of two eligible individuals of the same sex.
4. **Farm auto** means a truck type vehicle with a gross vehicle weight of 15,000 pounds or less, not used for commercial purposes other than farming.
5. **Insured** means a person or organization described under **PERSONS INSURED**.
6. **Non-owned auto** means a **private passenger auto**, **farm auto**, **utility auto** or **trailer** not owned by or furnished for the regular use of either *you* or *your relative*, other than a **temporary substitute auto**. *You* or *your relative* must be using the **non-owned auto** or **trailer** with the permission of the owner. A **private passenger auto**, **farm auto**, **utility auto** or **trailer** rented or leased for more than 30 days will be considered as furnished for regular use. Two or more **private passenger autos**, **farm autos**, **utility autos** or **trailers** consecutively rented or leased, one after the other, for more than 30 consecutive days will be considered as furnished for regular use.
7. **Owned auto** means:
  - (a) A vehicle described in this policy for which a premium charge is shown for these coverages;
  - (b) A **trailer** owned by *you*;
  - (c) A **private passenger auto**, **farm auto** or **utility auto**, ownership of which *you* acquire during the policy period or for which *you* enter into a lease during the policy period for a term of six months or more, if
    - (i) It replaces an **owned auto** as defined in (a) above; or
    - (ii) We insure all **private passenger autos**, **farm autos** and **utility autos** owned or leased by *you* on the date of acquisition, and *you* ask us to add it to the policy no more than 30 days later;
  - (d) A **temporary substitute auto**.
8. **Personal vehicle sharing program** means a business, organization, network or group facilitating the sharing of private passenger motor vehicles for use by individuals or businesses.
9. **Private passenger auto** means a four-wheel private passenger, station wagon or jeep-type auto.
10. **Property damage** means injury to or destruction of property. This includes loss of use of the property.
11. **Relative** means a person related to *you* by blood, marriage or adoption who is a resident of *your* household. This includes a ward or foster child.
12. **Ride-sharing** means the use of any vehicle by any driver in connection with a **transportation network company** from the time a driver logs on to or signs in to any computer or digital application or platform that connects or matches driver(s) with passenger(s) until the time a driver logs out of or signs off of any such application or platform, including while en route to pick up passenger(s) and while transporting passenger(s).
13. **Temporary substitute auto** means an auto or **trailer**, not owned by *you*, temporarily used with the permission of the owner. This vehicle must be used as a substitute for the **owned auto** or **trailer** when withdrawn from normal use because of its breakdown, repair, servicing, loss or destruction.
14. **Trailer** means a trailer designed to be towed by a **private passenger auto**, if not being used for business or commercial purposes with a vehicle other than a **private passenger auto**, **farm auto** or **utility auto**.
15. **Transportation network company** means a company or organization facilitating and/or providing transportation services using a computer or digital application or platform to connect or match passengers with drivers for compensation or a fee.

16. **Utility auto** means a vehicle, other than a **farm auto**, with a gross vehicle weight of 15,000 pounds or less of the pick-up body, van or panel truck type not used for commercial purposes.
17. **War** means armed conflict between nations, whether or not declared, civil war, insurrection, rebellion or revolution.
18. **You (Your)** means only the individual(s) named in the **Declarations Page** as **Named Insured** and his or her spouse or **civil union** partner if a resident of the same household.
- You** and **your** does not include any individual(s) named in the **Declarations Page** as:
- (a) **Additional Drivers**;
  - (b) **Additional Driver**; or
  - (c) any other individual(s).

## LOSSES WE WILL PAY

Under **Section I**, we will pay damages which an **insured** becomes legally obligated to pay because of:

1. **Bodily injury**, sustained by a person, and
2. **Property damage**,

arising out of the ownership, maintenance or use of the **owned auto** or **non-owned auto**. We will defend any suit for damages payable under the terms of this policy. We may investigate and settle any claim or suit. We have no duty to investigate or defend any claims not covered under the terms of this policy.

## ADDITIONAL PAYMENTS WE WILL MAKE UNDER THE LIABILITY COVERAGES

1. All investigative and legal costs incurred by us.
2. All court costs charged to an **insured** in a covered lawsuit.
3. Interest calculated on that part of a judgment that is within our limit of liability and accruing:
  - (a) Before the judgment, where owed by law, and until we pay, offer to pay, or deposit in court the amount due under this coverage;
  - (b) After the judgment, and until we pay, offer to pay, or deposit in court the amount due under this coverage.
4. Premiums for appeal bonds in a suit we appeal, or premiums for bonds to release attachments; but the face amount of these bonds may not exceed the applicable limit of liability.
5. We will upon request by an **insured**, provide reimbursement for the following items:
  - (a) Reasonable costs, up to \$500, incurred when that **insured** provides and renders first aid to others at the time of an accident involving an **owned auto** or **non-owned auto**.
  - (b) Loss of earnings up to \$50 a day, but not other income, if we request an **insured** to attend hearings and trials.
  - (c) All reasonable costs incurred by an **insured** at our request.
  - (d) Premiums for bail bonds paid by an **insured** due to traffic law violations arising out of the use of an **owned auto** or **non-owned auto**, not to exceed \$250 per bail bond.

## EXCLUSIONS

Section I does not apply to any claim or suit for damages and we will not indemnify an **insured** if one or more of the exclusions listed below applies.

**Section I** does not apply:

1. In excess of the minimum financial responsibility limits required by New Jersey law for **bodily injury** or **property damage** arising out of the ownership, maintenance, or use of any vehicle used to carry persons or property for compensation or a fee, including but not limited to the delivery of food or any other products. However there is no coverage for a vehicle while being used for **ride-sharing**. A vehicle used in an ordinary car pool is covered. An ordinary car pool is one where:
  - (i) An **insured** receives no payment for using a vehicle for a car pool ride; or
  - (ii) An **insured** receives only reimbursement for expenses for using a vehicle for a car pool ride, the reimbursement an **insured** receives for providing the car pool ride does not exceed the reasonable cost of gas and depreciation for the distance traveled, and the reimbursement received by an **insured** is not required to be reported for income tax purposes.
2. To **bodily injury** or **property damage** caused intentionally by or at the direction of an **insured**.
3. To **bodily injury** or **property damage** that is insured under a nuclear liability policy.
4. To **bodily injury** or **property damage** arising from the operation of farm machinery.
5. To **bodily injury** to an employee of an **insured** arising out of and in the course of employment by an **insured**. However, **bodily injury** of a domestic employee of the **insured** is covered unless benefits are payable or are required to be provided under a workers' or workmen's compensation law.
6. To **bodily injury** to a fellow employee of an **insured** if the fellow employee's **bodily injury** arises from the use of an auto while in the course of employment and if worker's compensation or other similar coverage is available. We will defend **you** if a suit is brought by a fellow employee against **you** alleging use, ownership or maintenance of an auto by **you**.

7. To an **owned auto** while used by a person (other than **you** or a **relative**) when he is employed or otherwise engaged in the **auto business** in excess of the minimum financial responsibility limits required by New Jersey law.
8. To a **non-owned auto** while maintained or used by any person while such person is employed or otherwise engaged in (1) any **auto business** if the accident arises out of that business; (2) any other business or occupation of any **insured** if the accident arises out of that business or occupation, except a **private passenger auto** used by **you** or **your** chauffeur or domestic servant while engaged in such other business.
9. To damage to:
  - (a) Property, including motor vehicles of any type, owned, operated, transported or used by an **insured**; or
  - (b) Property rented to or in the charge of an **insured** other than a residence or private garage.
10. To an auto acquired by **you** during the policy term, if **you** have purchased other liability insurance for it.
11. To:
  - (a) The United States of America or any of its Agencies;
  - (b) Any person, including **you**, if protection is afforded under the provisions of the Federal Tort Claims Act.
12. To any liability assumed under any contract or agreement.
13. To:
  - (a) **bodily injury** or **property damage** caused by a motor vehicle driven in or preparing for any racing, speed or demolition contest, whether or not prearranged or organized; or
  - (b) any stunting or off-roading activity of any nature, whether or not prearranged or organized; or
  - (c) the operation or use of a motor vehicle on a track designed primarily for racing or high speed driving. This does not apply if the vehicle is being used in connection with an activity other than racing, high speed driving or any competitive driving.
14. To punitive or exemplary damages recovered or potentially recoverable from any **insured** arising from the use or abuse of alcohol, medication or drugs.
15. To **bodily injury** or **property damage** caused by **war**, whether or not declared, civil **war**, insurrection, rebellion or revolution.
16. In excess of the minimum financial responsibility limits required by New Jersey law, for any person or organization while an **owned auto** is operated, maintained or used as part of personal vehicle sharing facilitated by a **personal vehicle sharing program**. This exclusion does not apply to the operation of a **temporary substitute auto** by **you** or **your relatives** or to any other person using a **temporary substitute auto** with **your** permission.
17. To any vehicle, or series of vehicles, leased by **you** or a **relative** for less than six months unless the vehicle is described, and a premium charge is shown for the vehicle for this coverage, in the declarations of this policy.
18. To any vehicle, or series of vehicles, regularly rented by **you** or a **relative** on a daily, weekly or monthly basis unless the vehicle is described, and a premium charge is shown for the vehicle for this coverage, in the declarations of this policy.

## PERSONS INSURED

**Section I** applies to the following as **insureds** with regard to an **owned auto**:

1. **You** and **your relatives**;
2. Any other person using the auto with **your** permission;
3. Any other person or organization for his or its liability because of acts or omissions of an **insured** under 1. or 2. above.

**Section I** applies to the following with regard to a **non-owned auto**:

1. (a) **You**;
- (b) **Your relatives** when using a **private passenger auto**, or **utility auto**, **farm auto** or **trailer**.  
Such use by **you** or **your relatives** must be with the permission, or reasonably believed to be with the permission of the owner.
2. A person or organization, not owning or hiring the auto, regarding his or its liability because of acts or omissions of an **insured** under 1. above.  
The coverage limits stated in the Declarations are our maximum obligations regardless of the number of **insureds** involved in the occurrence.

## FINANCIAL RESPONSIBILITY LAWS

When this policy is certified as proof of financial responsibility for the future under the provisions of a motor vehicle financial responsibility law, this liability insurance will comply with the provisions of that law.

## OUT OF STATE INSURANCE

When the policy applies to the operation of a motor vehicle outside of **your** state, we agree to increase **your** coverages to the extent required of out-of-state motorists by local law. This additional coverage will be reduced to the extent that **you** are protected by another automobile insurance policy. No person can be paid more than once for any item of loss.

## COVERAGE LIMITS

Regardless of the number of autos or **trailers** to which this policy applies:

1. The limit of Bodily Injury Liability stated in the Declarations as applicable to "each person" is the limit of our liability for all damages, including damages for care and loss of services, because of **bodily injury** sustained by one person as the result of one occurrence.
2. The limit of Bodily Injury Liability stated in the Declarations as applicable to "each occurrence" is, subject to the above provision respecting each person, the total limit of our liability for all such damages, including damages for care and loss of services, because of **bodily injury** sustained by two or more persons as the result of any one occurrence.
3. The limit of Property Damage Liability stated in the Declarations is the total limit of our liability for all damages because of injury to or destruction of the property of one or more persons or organizations, including the loss of use of the property as the result of any one occurrence.

## OTHER INSURANCE

If the **insured** has other insurance against a loss covered by **Section I** of this policy, we will not owe more than our pro-rata share of the total coverage available.

Any insurance we provide for losses arising out of the ownership, maintenance or use of a vehicle **you** do not own shall be excess over any other valid and collectible insurance.

## CONDITIONS

The following conditions apply to **Section I**:

### 1. NOTICE

As soon as possible after an occurrence, notice must be given to us or our authorized agent stating:

- (a) The identity of the **insured**;
- (b) The time, place and details of the occurrence;
- (c) The names and addresses of the injured, and of any witnesses; and
- (d) The names of the owners and the description and location of any damaged property.

If a claim or suit is brought against an **insured**, he must promptly send us each demand, notice, summons or other process received.

### 2. TWO OR MORE AUTOS

If this policy covers two or more autos, the limit of coverage applies separately to each. An auto and an attached **trailer** are considered to be one auto.

### 3. ASSISTANCE AND COOPERATION OF THE INSURED

The **insured** will cooperate and assist us, if requested:

- (a) In the investigation of the occurrence;
- (b) In making settlements;
- (c) In the conduct of suits;
- (d) In enforcing any right of contribution or indemnity against any legally or responsible person or organization because of **bodily injury** or **property damage**;
- (e) At trials and hearings;
- (f) In securing and giving evidence; and
- (g) By obtaining the attendance of witnesses.

Only at his own cost will the **insured** make a payment, assume any obligation or incur any cost other than for first aid to others.

### 4. ACTION AGAINST US

No suit will lie against us:

- (a) Unless the **insured** has fully complied with all the policy's terms and conditions; and
- (b) Until the amount of the **insured's** obligation to pay has been finally determined; either
  - (i) By a final judgment against the **insured** after actual trial; or
  - (ii) By written agreement of the **insured**, the claimant and us.

A person or organization or the legal representative of either, who secures a judgment or written agreement, may then sue to recover up to the policy limits.

No person or organization, including the **insured**, has a right under this policy to make us a defendant in an action to determine the **insured's** liability.

Bankruptcy or insolvency of the **insured** or of his estate will not relieve us of our obligations.

### 5. SUBROGATION

When payment is made under this coverage, we will be subrogated to all the **insured's** rights of recovery against others.

The **insured** will help us to enforce these rights. The **insured** will do nothing after loss to prejudice these rights.

This means we will have the right to sue for or otherwise recover the loss from anyone else who may be held responsible.



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## SECTION II - PERSONAL INJURY PROTECTION COVERAGE

### Protection For Injured Person For Medical Expenses, Income Continuation, Funeral Expenses & Essential Services

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With respect to coverage provided by **Section II**, the provisions of the policy apply unless modified by this part or the Declarations and Schedule A.

#### PERSONAL INJURY PROTECTION COVERAGE

##### Benefits

###### Medical Expenses

***Named Insured*** and ***Relative***

##### Limit of Liability

PER PERSON/PER ACCIDENT LIMIT AS STATED ON THE DECLARATIONS FOR PERSONAL INJURY PROTECTION. However, if a limit lower than \$250,000 is shown, a limit of \$250,000 per person/per accident is available for a ***named insured*** or ***relative*** for ***catastrophic injury treatment***.

***Insureds*** Other Than ***Named Insured*** and ***Relatives***

\$250,000 PER PERSON/PER ACCIDENT LIMIT

###### Non-Medical Benefits (Extra PIP Package)

Income Continuation

\$100 per week to a maximum of \$5,200

Essential Services

\$12 per day to a maximum of \$4,380

Death Benefits

Income Producer

\$5,200 less any Income Continuation Benefits paid

Essential Services

\$4,380 less any Essential Services Provider Benefits paid

Funeral Expenses

\$1,000

###### Out of State Losses-PIP Coverage for those not insured through a household policy

Insureds other than Named Insured, Relatives & NJ Residents

A non-New Jersey insured is eligible for the state minimums for Personal Injury, required by law of the state in which the accident occurs, or \$250,000 per person/per accident, whichever is less.

**PERSONAL INJURY PROTECTION OPTIONS – SCHEDULE A**  
**PIP FULL PIP PRIMARY**  
**PIP FULL HEALTH**  
**PRIMARY PIP MED ONLY**  
**PIP PRIMARY**  
**PIP MED ONLY HEALTH PRIMARY**

|          | Medical<br>Expense<br>Deductible | Medical<br>Expense |
|----------|----------------------------------|--------------------|
| OPTION A | \$250                            | \$15,000           |
| OPTION B | \$250                            | \$50,000           |
| OPTION C | \$250                            | \$75,000           |
| OPTION D | \$250                            | \$150,000          |
| OPTION E | \$250                            | \$250,000          |
| OPTION F | \$500                            | \$15,000           |
| OPTION G | \$500                            | \$50,000           |
| OPTION H | \$500                            | \$75,000           |
| OPTION I | \$500                            | \$150,000          |
| OPTION J | \$500                            | \$250,000          |
| OPTION K | \$1,000                          | \$15,000           |
| OPTION L | \$1,000                          | \$50,000           |
| OPTION M | \$1,000                          | \$75,000           |
| OPTION N | \$1,000                          | \$150,000          |
| OPTION O | \$1,000                          | \$250,000          |
| OPTION P | \$2,000                          | \$15,000           |
| OPTION Q | \$2,000                          | \$50,000           |
| OPTION R | \$2,000                          | \$75,000           |
| OPTION S | \$2,000                          | \$150,000          |
| OPTION T | \$2,000                          | \$250,000          |
| OPTION U | \$2,500                          | \$15,000           |
| OPTION V | \$2,500                          | \$50,000           |
| OPTION W | \$2,500                          | \$75,000           |
| OPTION X | \$2,500                          | \$150,000          |
| OPTION Y | \$2,500                          | \$250,000          |

**RESIDUAL MEDICAL PAYMENTS - MEDICAL PAYMENTS COVERAGE**

The total limit of Extended Medical Expense Benefits payable is \$1,000 per person/per accident, unless another limit is shown on the Declarations under RESIDUAL MEDICAL PAYMENTS.

**MEDICAL EXPENSE BENEFITS DEDUCTIBLE**

Unless otherwise indicated by the option selection shown on the Declarations, medical expense benefits are subject to a deductible of \$250 per person/per accident.

If a higher PIP deductible is selected, the medical expense benefits applicable to the ***named insured*** and ***relatives*** shall be subject to the higher deductible instead of the \$250 deductible per person/per accident.

***Insureds*** other than the ***named insured*** and ***relatives*** shall be subject to a separate deductible of \$250 per person/per accident.

**MEDICAL EXPENSE BENEFITS CO-PAYMENT**

Medical expense benefits are subject to a co-payment of 20% per person/per accident for amounts payable between the applicable deductible and \$5,000, except as otherwise provided under the Penalty section of the Precertification Plan.

**DELETION OF BENEFITS OTHER THAN MEDICAL EXPENSE BENEFITS**

If **PIP MED ONLY PIP PRIMARY** OPTION is shown on the Declarations under Personal Injury Protection, no personal injury protection benefits, other than medical expense benefits, apply to the ***named insured*** or ***relatives***.

**MEDICAL EXPENSE BENEFITS AS SECONDARY COVERAGE**

If **PIP FULL HEALTH PRIMARY** OPTION is shown on the Declarations, medical expense benefits applicable to the ***named insured*** and ***relatives*** shall be secondary to health benefits plans under which the ***named insured*** and ***relatives*** are insured. Coverage also includes Non-Medical Benefits.

If **PIP MED ONLY HEALTH PRIMARY** OPTION is shown on the Declarations, medical expense benefits applicable to the ***named insured*** and ***relatives*** shall be secondary coverage to health benefits plans under which the ***named insured*** and ***relatives*** are insured. Coverage excludes Non-Medical Benefits (Extra PIP Package).

## PEDESTRIAN PERSONAL INJURY PROTECTION COVERAGE

Our Limit for Pedestrian Personal Injury Protection benefits payable under this Part is subject to the following limits:

### Medical Expenses

\$250,000 per person/per accident

### Income Continuation

\$100 per week to a maximum of \$5,200

### Essential Services

\$12 per day to a maximum of \$4,380

### Death Benefits

Income Producer

\$5,200 less any Income Continuation Benefits paid

Essential Services Provider

\$4,380 less any Essential Services Benefits paid

Funeral Expenses

\$1,000

## DEFINITIONS

The definition of terms for Section I apply to Section II except for the following special definitions:

1. **Actual benefits** means those benefits determined to be payable for **allowable expenses**.
2. **Allowable expense** means a **medically necessary**, reasonable and customary item of expense covered as benefits by the **named insured's** or a **relative's** health benefits plan or personal injury protection benefits as an **eligible expense**, at least in part. When benefits provided are in the form of services, the reasonable monetary value of each such service shall be considered as both an **allowable expense** and a paid benefit.
3. **Auto** means a self-propelled vehicle of one of the following types, which is designed for use principally on public roads:
  - (a) A private passenger or station wagon type automobile;
  - (b) A pickup, delivery sedan or van; or
  - (c) A utility automobile designed for personal use as a camper, motor home, or for family recreational purposes.However, **auto** does not include:
  - (a) A motorcycle;
  - (b) Any motorized vehicle that is designed for use principally off public roads;
  - (c) An automobile used as a public or livery conveyance;
  - (d) A pickup, delivery sedan, van, or utility automobile customarily used in the occupation, profession or business of an **insured** other than farming or ranching; or
  - (e) A utility automobile customarily used for the transportation of passengers other than members of the user's family or their guests.
4. **Bodily injury** means bodily harm, sickness or disease, including an **identified injury** or death that results.
5. **Catastrophic injury treatment** means medical expenses incurred for treatment of:
  - (a) Permanent or significant brain injury or spinal cord injury; or
  - (b) Permanent or **significant disfigurement**; or
  - (c) Other permanent or significant injuries rendered at a trauma center or acute care hospital immediately following the accident and until the **insured**:
    1. Is stable;
    2. No longer requires critical care; and
    3. Can be safely discharged or transferred to another facility in the judgment of the attending **health care provider**.
6. **Clinically supported** means that a **health care provider**, prior to selecting, performing or ordering the administration of a treatment or diagnostic test, has:
  - (a) Personally examined the patient to ensure that the proper medical indications exist to justify ordering the treatment or test;
  - (b) Physically examined the patient including making an assessment of any current and/or historical subjective complaints, observations, objective findings, neurologic indications, and physical tests;
  - (c) Considered any and all previously performed tests that:
    1. Relate to the injury and the results; and
    2. Are relevant to the proposed treatment or test; and
  - (d) Recorded and documented these observations, positive and negative findings and conclusions on the patient's medical records.

7. **Decision point** means those junctures in the treatment of identified injuries where a decision must be made about the continuation or choice of further treatment. **Decision point** also refers to a determination to administer one of the tests listed in N.J.A.C. 11:3-4.5(b) for identified and all other injuries.
8. **Eligible expense** means:
- (a) With respect to health benefits plans, that portion of the medical expenses incurred for the treatment of **bodily injury** which is covered under the terms and conditions of the plan, without application of the deductible(s) and co-payment(s), if any.
  - (b) With respect to personal injury protection benefits, that portion of the medical expenses incurred for the treatment of **bodily injury** which, without considering any deductible and co-payment, shall not exceed:
    1. The percent or dollar amounts specified on the medical fee schedules, or the actual billed expense, whichever is less; or
    2. The reasonable amount, as determined by us, considering the medical fee schedules for similar services or equipment in the region where the service or equipment was provided, when an incurred medical expense is not included on the medical fee schedules.
9. **Emergency care** means all **medically necessary** treatment of a traumatic injury or a medical condition manifesting itself by acute symptoms of sufficient severity such that absence of immediate attention could reasonably be expected to result in:
- (a) Death;
  - (b) Serious impairment to bodily functions; or
  - (c) Serious dysfunction of a bodily organ or part.
- Such **emergency care** shall include all **medically necessary** care immediately following an automobile accident, including, but not limited to, immediate pre-hospitalization care, transportation to a hospital or trauma center, emergency room care, surgery, critical and acute care. **Emergency care** extends during the period of initial hospitalization until the patient is discharged from acute care by the attending physician.
- Emergency care** shall be presumed when medical care is initiated at a hospital within 120 hours of the accident.
10. **Health care provider** means those persons licensed or certified to perform health care treatment or services compensable as medical expenses and shall include, but not be limited to:
1. A hospital or health care facility that is maintained by State or any political subdivision;
  2. A hospital or health care facility licensed by the Department of Health and Senior Services;
  3. Other hospitals or health care facilities designated by the Department of Health and Senior Services to provide health care services, or other facilities, including facilities for radiology and diagnostic testing, freestanding emergency clinics or offices, and private treatment centers;
  4. A non-profit voluntary visiting nurse organization providing health care services other than a hospital;
  5. Hospitals or other health care facilities or treatment centers located in other States or nations;
  6. Physicians licensed to practice medicine and surgery;
  7. Licensed chiropractors;
  8. Licensed dentists;
  9. Licensed optometrists;
  10. Licensed pharmacists;
  11. Licensed chiropodists (podiatrists);
  12. Registered bioanalytical laboratories;
  13. Licensed psychologists;
  14. Licensed physical therapists;
  15. Certified nurse mid-wives;
  16. Certified nurse practitioners/clinical nurse- specialist;
  17. Licensed health maintenance organizations;
  18. Licensed orthotists and prosthetists;
  19. Licensed professional nurses;
  20. Licensed occupational therapists;
  21. Licensed speech-language pathologists;
  22. Licensed audiologists;
  23. Licensed physician's assistants;
  24. Licensed physical therapy assistants;
  25. Licensed occupational therapy assistants;
  26. Providers of other health care services or supplies, including durable medical goods; and
  27. Licensed Acupuncturists.

**11. Highway vehicle** means a land motor vehicle or **trailer** other than:

- (a) An auto;
- (b) A farm type tractor or other equipment designed for use principally off public roads, while not on public roads;
- (c) A vehicle operated on rails or crawler treads; or
- (d) A vehicle while located for use as a residence or premises.

**12. Hospital expenses** means the cost of treatment and services, as provided in the policy approved by the commissioner, by a licensed and accredited acute care facility which engages primarily in providing diagnosis, treatment and care of sick and injured persons on an inpatient or outpatient basis; the cost of covered treatment and services provided by an extended care facility which provides room and board and skilled nursing care 24 hours a day and which is recognized by the administrators of the federal Medicare program as an extended care facility; and the cost of covered services at an ambulatory surgical facility supervised by a physician licensed in New Jersey or in another jurisdiction and recognized by the Commissioner of Health and Senior Services, or any other facility licensed, certified or recognized by the Commissioner of Health and Senior Services or the Commissioner of Human Services or a nationally recognized system such as the Commission on Accreditation of Rehabilitation Facilities, or by another jurisdiction in which it is located.

**13. Identified injury** means the following **bodily injuries** for which the New Jersey Department of Banking and Insurance has established standard courses of diagnosis and treatment for medical expenses resulting from such injuries:

- (a) Cervical Spine: Soft Tissue Injury;
- (b) Cervical Spine: Herniated Disc/Radiculopathy;
- (c) Thoracic Spine: Soft Tissue Injury;
- (d) Thoracic Spine: Herniated Disc/Radiculopathy;
- (e) Lumbar-Sacral Spine: Soft Tissue Injury;
- (f) Lumbar-Sacral Spine: Herniated Disc/Radiculopathy; and
- (g) Any other **bodily injury** for which the New Jersey Department of Banking and Insurance has established standard courses of diagnosis and treatment for medical expenses resulting from such injuries.

**14. Income** means salary, wages, tips, commissions, fees and other earnings derived from work or employment. It does not include unearned income such as pensions, interest, dividends or social security.

**15. Income producer** means a person who, at the time of the accident, was in an occupational status earning or producing **income**. The status of an income producer will cease when the recipient is no longer an income producer for reasons other than disability.

**16. Essential services** means those services performed not for **income** which are ordinarily performed by an individual for the care and maintenance of such individual's family or family household.

**17. Insured motor vehicle** means a motor vehicle:

- (a) That is **insured** for both bodily injury liability coverage and Pedestrian Personal Injury Protection Coverage under this policy; and
- (b) For which specific premiums have been charged.

**18. Medically necessary or medical necessity** means that the medical treatment or diagnostic test is consistent with the **clinically supported** symptoms, diagnosis or indications of the injured person, and

- (a) The treatment is the most appropriate level of service that is in accordance with the standards of good practice and standard professional treatment protocols, including the Care Paths in the Appendix of the regulations promulgated by the New Jersey Department of Banking and Insurance set forth at N.J.A.C. 11:3-4;
- (b) The treatment of the injury is not primarily for the convenience of the injured person or provider; and
- (c) Does not include unnecessary testing or treatment.

**19. Named insured** means:

- (a) The individual(s) named in the **Declarations Page** as **Named Insured**; and
- (b) That person's spouse or **civil union** partner if a resident of the same household.

However, if:

- (a) The spouse ceases to be a resident of the same household during the policy period, the spouse shall be a **named insured** for the full term of that policy period.
- (b) **Your covered auto** is owned by a farm family co-partnership or corporation, **named insured** includes the head of the household of each family designated in the policy as having a working interest in the farm.

**20. Occupying** means in, upon, entering into, on, out, off or alighting from an **auto**.

**21. Pedestrian** means any person who is not **occupying** a vehicle:

- (a) Propelled by other than muscular power; and
- (b) Designed primarily for use on highways, rails and tracks.

- 22. Precertification** means the pre-approval by us of potentially covered expenses including but not limited to certain services, diagnostic tests, medical treatment and procedures, prescription supplies, and durable medical equipment.
- 23. Significant disfigurement** means the result and/or manifestation of a serious traumatic injury that is observable as a permanent and substantial defect in the appearance and functional ability of the person injured. Significant disfigurement is a serious outward change that substantially detracts from the appearance and functional ability of the person injured.
- 24. Your covered auto** means an **auto**:
- (a) For which the **named insured** is required to maintain automobile liability insurance coverage under the New Jersey Automobile Reparation Reform Act;
  - (b) To which the bodily injury liability coverage under this policy applies; and
  - (c) For which a specific premium is charged.

## PERSONAL INJURY PROTECTION COVERAGE

### LOSSES WE PAY

1. We will pay personal injury protection benefits to or for an **insured** who sustains **bodily injury**. The **bodily injury** must be caused by an accident arising out of the ownership, maintenance or use, including loading or unloading, of an **auto** as an automobile.
2. With respect to Personal Injury Protection Coverage, **insured** means:
  - (a) The **named insured** or any **relative** who sustains **bodily injury** while:
    1. **Occupying** or using an **auto**; or
    2. A **pedestrian**, when caused by:
      - (i) An **auto**; or
      - (ii) An object propelled by or from an **auto**.
  - (b) Any other person who sustains **bodily injury** while **occupying** or using **your covered auto** with the permission of the **named insured**.
3. Subject to the limits shown in Schedule A or in the Declarations, personal injury protection benefits consist of the following:
  - (a) Medical expenses.

Reasonable and necessary expenses incurred for:

    1. Medical, surgical, rehabilitative and diagnostic treatments and services;
    2. **Hospital expenses**;
    3. Ambulance or transportation services;
    4. Medication; and
    5. Non-medical expenses that are prescribed by a treating **health care provider** for a permanent or significant brain, spinal cord or disfiguring injury.

Non-medical expense means charges for:

    - (a) Products and devices, not exclusively used for medical purposes or as durable medical equipment, such as vehicles, durable goods, equipment, appurtenances, improvements to real or personal property, fixtures; and
    - (b) Services and activities such as recreational activities, trips and leisure activities.

All medical expenses must:

    1. Be rendered by a **health care provider**;
    2. Be **clinically supported** and consistent with the symptoms, diagnosis or indications of the **insured**;
    3. Be consistent with the most appropriate level of service that is in accordance with the standards of good practice and standard professional treatment protocols, including care paths for an **identified injury**;
    4. Not be rendered primarily for the convenience of the injured person or the **health care provider**; and
    5. Not include unnecessary testing or treatment.

However, medical expenses include any non-medical remedial treatment rendered in accordance with recognized religious methods of healing.
  - (b) Non-Medical Benefits (Extra PIP Package)
    1. Income continuation.

The payment of loss of **income** of an **income producer** as a result of **bodily injury** disability, subject to a maximum weekly payment of \$100. Such sum shall be payable during the life of the insured injured person and shall be subject to an amount or limit of \$5,200, on account of injury to an **insured** in any one accident, except that in no case shall income continuation benefits exceed the net **income** normally earned during the period in which the benefits are payable.

2. Essential services.

Payment of essential services benefits to an **insured**, shall be made in reimbursement of necessary and reasonable expenses incurred for such substitute **essential services** ordinarily performed by the **insured** for himself and any **relatives**, subject to an amount or limit of \$12 per day. Such benefits shall be payable during the life of the insured and shall be subject to an amount or limit of \$4,380, on account of injury to any **insured** in any one accident.

3. Death benefits.

An amount payable in the event of the death of an **insured**, calculated as follows:

- (a) If the **insured** was an **income producer** at the time of the accident, the amount equal to the difference between \$5,200 and all income continuation benefits paid for any loss of **income** resulting from the **insured's** injury prior to the **insured's** death.
- (b) If the **insured** ordinarily performed **essential services** for the care and maintenance of himself and any **relative**, an amount not to exceed the difference between \$4,380 and all essential service benefits paid with respect to the **insured's** injury prior to death.

Benefits of this section shall be paid to the surviving spouse or **civil union** partner, or in the event there is no surviving spouse or **civil union** partner, then to the surviving children, and in the event there are no surviving spouse, **civil union** partner or surviving children, then to the estate of the **insured**.

4. Funeral expenses.

Reasonable expenses incurred for funeral, burial and cremation.

## **PEDESTRIAN PERSONAL INJURY PROTECTION**

### **COVERAGE LOSSES WE PAY**

- 1. We will pay Pedestrian Personal Injury Protection Coverage to or for a **named insured** or **relative** who sustains **bodily injury**.
- 2. With respect to Pedestrian Personal Injury Protection Coverage, **insured** means a person who sustains **bodily injury** while a **pedestrian**;
  - (a) Caused by an **insured motor vehicle**; or
  - (b) As a result of being struck by an object propelled by or from an **insured motor vehicle**.
- 3. Subject to the limits shown in **PEDESTRIAN PERSONAL INJURY PROTECTION COVERAGE OR PERSONAL INJURY PROTECTION OPTIONS - SCHEDULE A**, Pedestrian Personal Injury Protection benefits consist of the following:
  - (a) Medical expenses.
  - (b) Income continuation.
  - (c) Essential services.
  - (d) Death benefits.
  - (e) Funeral expenses.

## **RESIDUAL MEDICAL PAYMENTS - MEDICAL PAYMENTS COVERAGE**

### **LOSSES WE PAY**

- 1. We will pay extended medical expense benefits to or for an **insured** who sustains **bodily injury**. The **bodily injury** must be caused by an accident arising out of the ownership, maintenance or use, including loading and unloading, of a **highway vehicle** not owned by or furnished or available for the regular use of the **named insured** or any **relative**.
- 2. With respect to Extended Medical Expense Benefits Coverage, **insured** means:
  - (a) The **named insured** or any **relative** who sustains **bodily injury** while:
    - (i) **Occupying** or using a **highway vehicle**; or
    - (ii) A **pedestrian**, caused by a **highway vehicle**.
  - (b) Any other person:
    - (i) Who sustains **bodily injury** while **occupying** a **highway vehicle** being operated by the **named insured** or any **relative**, other than a:
      - (a) Motorcycle; or
      - (b) Vehicle being used as a public or livery conveyance; or
    - (ii) Using such **highway vehicle** with the permission of the **named insured**.
- 3. The total limit of Extended Medical Expense Benefits payable is \$1,000 per person/per accident, unless another limit is shown on the Declarations under Residual Medical Payments.

## EXCLUSIONS

### A. We do not provide Personal Injury Protection Coverage for **bodily injury**:

1. To any **insured**:
  - (a) Whose conduct contributed to the **bodily injury** in any of the following ways:
    - (i) While committing a high misdemeanor or felony, or seeking to avoid lawful apprehension or arrest by a police officer; or
    - (ii) While acting with specific intent to cause injury or damage to himself or others.
  - (b) Operating or **occupying** an **auto** without the permission of the:
    - (i) Owner of the **auto**; or
    - (ii) **Named insured** under the policy insuring that **auto**.
  - (c) Other than a **named insured** or any **relative** if that **insured** is entitled to Personal Injury Protection Coverage or Medical Payments Coverage as a **named insured** or **relative** under the terms of another policy.
2. To any **relative** if that **relative** is entitled to New Jersey Personal Injury Protection Coverage as a **named insured** under the terms of another policy.
3. Arising out of the ownership, maintenance or use, including loading or unloading, of any vehicle while located for use as a residence or premises, other than for transitory recreational purposes.
4. Due to:
  - (a) **War** (declared or undeclared);
  - (b) Civil **war**;
  - (c) Insurrection;
  - (d) Rebellion or revolution; or
  - (e) Any act or condition incident to any of the above.
5. Resulting from the:
  - (a) Radioactive;
  - (b) Toxic;
  - (c) Explosive; or
  - (d) Other hazardous; properties of nuclear material.
6. To any **insured** while any vehicle is being used for **ride-sharing**.

### B. We do not provide:

1. Personal Injury Protection Coverage for **bodily injury** to any **insured** who is not **occupying your covered auto** if the accident occurs outside of New Jersey. However, this exclusion does not apply to:
  - (a) The **named insured**;
  - (b) Any **relative**; or
  - (c) Any resident of New Jersey.
2. Personal Injury Protection Coverage or Extended Medical Expense Benefits Coverage for **bodily injury** to any **insured** who, at the time of the accident, was the owner or registrant of an **auto** registered or principally garaged in New Jersey that was being operated without Personal Injury Protection Coverage.
3. Extended Medical Expense Benefits Coverage for **bodily injury** to any **insured**:
  - (a) Who is entitled to benefits for the **bodily injury** under:
    - (i) Personal Injury Protection Coverage; or
    - (ii) Any:
      1. Workers' compensation law; or
      2. Medicare provided under federal law.
  - (b) Who would be entitled to benefits for the **bodily injury** under Personal Injury Protection Coverage, except for the application of a:
    - (i) Deductible;
    - (ii) Co-payment; or
    - (iii) Medical fee schedule promulgated by the New Jersey Department of Banking and Insurance.
  - (c) If the accident occurs outside of New Jersey. However, this exclusion does not apply to:
    - (i) The **named insured**;
    - (ii) Any **relative**; or
    - (iii) Any resident of New Jersey.
  - (d) While any vehicle is being used for **ride-sharing**.



- C. We do not provide Personal Injury Protection Coverage with respect to the following diagnostic tests:
1. Spinal diagnostic ultrasound;
  2. Iridology;
  3. Reflexology;
  4. Surrogate arm mentoring;
  5. Surface electromyography (surface EMG);
  6. Mandibular tracking and stimulation; or
  7. Any other diagnostic test that is determined to be ineligible for coverage under Personal Injury Protection Coverage by New Jersey law or regulation.
- D. Pursuant to N.J.A.C. 13:30-8.22(c), the personal injury protection medical expense coverage shall not provide reimbursement for the following diagnostic tests which have been identified by the New Jersey State Board of Dentistry as failing to yield data of sufficient volume to alter or influence the diagnosis or treatment plan employed to treat TMJ/D:
1. Mandibular tracking;
  2. Surface EMG;
  3. Sonography;
  4. Doppler ultrasound;
  5. Needle EMG;
  6. Electroencephalogram (EEG);
  7. Thermograms/thermographs;
  8. Video fluoroscopy; and
  9. Reflexology.
- E. We do not provide Personal Injury Protection for those benefits deemed experimental or investigational.

#### **LIMIT OF LIABILITY**

- A. The limits of liability shown in the Declarations and Schedule A for the Personal Injury Protection Coverage benefits that apply are the most we will pay to or for each **insured** injured in any one accident, regardless of the number of:
1. **Insured**;
  2. Policies applicable; or
  3. Vehicles insured.
- B. Any amounts payable under Personal Injury Protection Coverage shall be reduced by any amounts:
1. Paid;
  2. Payable; or
  3. Required to be provided;
- under any of the following:
1. Workers' compensation law, disability benefits law or similar law;
  2. Employees temporary disability law or similar law;
  3. Medicare provided under federal law; or
  4. Benefits actually collected that are provided under federal law to active and retired military personnel.
- C. Any amounts payable for medical expense benefits shall be limited by the medical fee schedules promulgated by the New Jersey Department of Banking and Insurance for specific injuries or services.
- D. Any amounts payable for medical expense benefits as a result of any one accident shall be:
1. Reduced by the applicable deductible indicated in Schedule A or in the Declarations; and
  2. Subject to a co-payment of 20% per person/per accident for the amount between the applicable deductible and \$5,000.
- E. If the Declarations indicates the named insured has elected the Medical Expense Benefits as Secondary Coverage under PIP MED ONLY HEALTH PRIMARY or PIP FULL HEALTH PRIMARY option, the following provisions apply to medical expenses benefits:
1. Priority of Benefits
    - (a) The health benefits plans under which the **named insured** and any **relative** are insured shall provide primary coverage for **allowable expenses** incurred by the **named insured** or any **relative** before any medical expense benefits are paid by us.
    - (b) This insurance shall provide secondary coverage for medical expense benefits for **allowable expenses** which remain uncovered after the health benefits plans, under which the **named insured** and any **relative** are insured, have paid benefits towards those **allowable expenses**.
    - (c) The total benefits paid by the health benefits plans and this insurance shall not exceed the total amount of **allowable expenses**.

2. Determination of Medical Expense Benefits Payable

- (a) To calculate the amount of **actual benefits** to be paid by us, we will first determine the amount of **eligible expenses** which would have been paid by us, after application of the deductible and co-payment indicated in Schedule A or in the Declarations, had the **named insured** not elected the Medical Expense Benefits as Secondary Coverage option.
- (b) If the remaining **allowable expenses** are:
  - 1. Less than the benefits calculated in paragraph (a) above, we will pay actual benefits equal to the remaining allowable expenses, without reducing the remaining allowable expenses by the deductible or co-payment.
  - 2. Greater than the benefits calculated in paragraph (a) above, we will pay actual benefits equal to the benefits calculated in paragraph (a) above, without reducing the remaining allowable expenses by the deductible or co-payment.
- (c) We will not reduce the **actual benefits** determined in paragraph (b):
  - 1. By any deductibles or co-payments of the health benefits plans which have provided primary coverage for medical expense benefits; or
  - 2. For any **allowable expense** remaining uncovered which otherwise would not be an **eligible expense** under Personal Injury Protection Coverage, except as set forth in paragraph (d) below.
- (d) In determining remaining uncovered **allowable expenses**, we shall not consider any amount for items of expense which exceed the dollar or percent amounts recognized by the medical fee schedules promulgated by the New Jersey Department of Banking and Insurance.
- (e) The total amount of medical expense benefits for the **named insured** or any **relative** per accident shall not exceed the maximum amount payable for medical expense benefits under this policy.

3. Health Benefits Plan Ineligibility

- (a) If, after the **named insured** has elected the Medical Expense Benefits as Secondary Coverage under PIP MED ONLY HEALTH PRIMARY or PIP FULL HEALTH PRIMARY option, it is determined that the **named insured** or any **relative** did not have a health benefits plan in effect at the time an accident occurred which resulted in **bodily injury** to the **named insured** or any **relative**, medical expense benefits shall be provided to the **named insured** or any **relative**, subject to the following:
  - 1. Only paragraphs A. and B. of the Limit of Liability provision will apply with respect to medical expense benefits.
  - 2. Any amount payable for medical expense benefits for the **named insured** and any **relative** as a result of any one accident shall:
    - (a) Be reduced by a deductible equal to the sum of \$750 per person/per accident plus the applicable deductible indicated in Schedule A or in the Declarations; and
    - (b) Be subject to a co-payment of 20% per person/per accident for amounts less than \$5,000 after the deductible has been applied.
    - (c) Be determined:
      - (i) By the medical fee schedules promulgated by the New Jersey Department of Banking and Insurance; or
      - (ii) By us, on a reasonable basis, considering the medical fee schedules for similar services or equipment in the region where the service or equipment was provided, if an item of expense is not included on the medical fee schedules.
  - (d) Not exceed the maximum amount payable for medical expense benefits under this policy.
- (b) All items of medical expense incurred by the **named insured** or any **relative** for the treatment of **bodily injury** shall be **eligible expenses** to the extent the treatment or procedure from which the expenses arose:
  - 1. Is recognized on the medical fee schedules promulgated by the New Jersey Department of Banking and Insurance; or
  - 2. Are reasonable expenses in accordance with Section 4 of the New Jersey Automobile Reparation Reform Act.
- (c) We shall be entitled to recover the difference between:
  - 1. The reduced premium paid under this policy for the Medical Expense Benefits as Secondary Coverage option; and
  - 2. The premium which would have been paid under this policy had the **named insured** not elected such option.

We will not provide any premium reduction for the Medical Expense Benefits as Secondary Coverage under PIP MED ONLY HEALTH PRIMARY and PIP FULL HEALTH PRIMARY option for the remainder of the policy period.

- F. The limit of liability shown in Schedule A or in the Declarations for weekly income continuation benefits shall be prorated for any period of **bodily injury** disability, for work or employment, less than one week.

## OTHER INSURANCE

- A. No one will be entitled to duplicate payments for the same elements of loss under this or any similar insurance, including approved plans of self-insurance. If an **insured** receives benefits from another insurer, that insurer shall be entitled to recover from us its pro rata share of the benefits paid. An insurer's pro rata share is the proportion that the insurer's liability bears to the total of all applicable limits.
- B. With respect to:
1. Personal Injury Protection Coverage; or
  2. Pedestrian Personal Injury Protection Coverage;
- if there is other applicable insurance, including approved self-insurance plans, the maximum recovery under all such insurance shall not exceed the amount which would have been payable under the insurance with the highest limit of liability.
- C. With respect to extended medical expense benefits coverage, any insurance we provide under this policy shall be excess over any amounts:
1. Payable; or
  2. Required to be provided;
- under any other automobile no-fault law or medical payments coverage.
- D. If the **relative** for which this coverage is purchased is a **named insured** under a Basic Policy, this coverage does not apply pursuant to N.J.A.C. 11:3- 3.3.

## DUTIES AFTER AN ACCIDENT OR LOSS

- A. In the event of an accident, prompt notice must be given to us or our authorized representative. Such notice shall include:
1. Sufficient details to identify the **insured**; and
  2. Reasonably obtainable information as to the time, date, how, when and where the accident happened shall be given by or on behalf of each **insured**.
- B. A person seeking Personal Injury Protection Coverage must:
1. Promptly give us written proof of claim, including:
    - (a) Full particulars of the nature and extent of the **bodily injury** and treatment received and contemplated; and
    - (b) Any other information which may assist us in determining the amount due and payable; and
    - (c) Cooperate and immediately provide any and all documents and/or information we request, in the manner and form we may reasonably require, including but not limited to any and all requests for fully completed PIP forms.
  2. Promptly send us copies of:
    - (a) The summons and complaint; or
    - (b) Other process;served in connection with any legal action taken, to recover damages for **bodily injury**, against a person or organization who is or may be legally liable.
  3. Independent Medical Examination(s) - IME  
Submit, as often as we require, to physical or mental exams by physicians we select. We will provide the **insured** or his or her designee with a copy of the medical report if requested.  
The **insured** is expected to attend each IME as scheduled by us or our Plan, with proper photo identification.
    - (a) Failure of the **insured** to attend a scheduled IME without notice to the examining physician or the Plan shall constitute an unexcused failure to attend a scheduled IME. The burden is on the **insured** to prove that proper notice was provided.
    - (b) Failure of an **insured** to attend a scheduled IME will be considered excused if the **insured** notifies the examining physician or Plan at least 3 days prior to the IME date and reschedules the IME for a date, not to exceed 35 calendar days from the date of the original IME.
    - (c) The **insured** shall supply all requested medical records, diagnostic imaging films, test results and other pertinent records at the time of the examination or before. If the **insured** fails to provide the records by the IME date and proper photo identification on the date of IME, the IME will be unexcused.

### Rescheduling Independent Medical Examinations

- (a) If an **insured** has an excused failure to attend a scheduled IME and does not reschedule the IME within 35 calendar days of the original IME date, the failure to attend the original IME will be unexcused.
- (b) If an **insured** reschedules an IME for a date more than 35 calendar days from the date of the original IME, failure to attend the rescheduled IME shall be unexcused.

### Failure to Appear at Two or More Independent Medical Examinations

If the **insured** has two or more consecutive unexcused failures to attend scheduled IMEs of the same specialty, we (GEICO) will immediately notify the **insured** or their designee of benefit termination. We will deny payment of future treatment, durable medical equipment, and diagnostic testing provided on or after the date of the second unexcused failure to attend for the diagnosis and related diagnosis contained in the attending physician's treatment plan form and all other treatment on file.

4. Comply with all other requirements of the Decision Point Review/Pre-Certification Plan.

## GENERAL CONDITIONS

The conditions of **Section V** of the policy apply to **Section II** except as modified below.

### OUR RIGHT TO RECOVER PAYMENT

If we make a payment under this coverage and the person to or for whom payment was made recovers damages from another:

1. That person shall:
  - (a) Hold in trust for us the proceeds of the recovery;
  - (b) Reimburse us to the extent of our payment;
  - (c) Execute and deliver such instruments and papers as may be appropriate to secure the rights and obligations of that person and us; and
  - (d) Do nothing after loss to prejudice these rights.
2. We shall have a lien to the extent of such payment. We may give notice of lien to:
  - (a) The person or organization causing the **bodily injury**;
  - (b) His agent;
  - (c) His insurer; or
  - (d) A court having jurisdiction.

### TERRITORY

The policy territory is, with respect to:

1. Personal Injury Protection Coverage or Extended Medical Expense Benefits Coverage, anywhere in the world.
2. Pedestrian Personal Injury Protection Coverage, this policy applies only to accidents, occurrences or losses during the policy period within the state of New Jersey.

### TWO OR MORE AUTO POLICIES

If this policy covers two or more autos, the limit of coverage applies separately to each. An **auto** and an attached **trailer** are considered to be one **auto**.

1. This provision does not apply to Extended Medical Expense Benefits Coverage.
2. No one will be entitled to receive duplicate payments for the same elements of loss under Extended Medical Expenses Benefits Coverage.

### PAYMENT OF BENEFITS

1. We may, at our option, pay any medical expense benefits or essential services benefits to the:
  - (a) **Insured**; or
  - (b) Person or organization providing products or services for such benefits.These benefits shall not be assignable except to providers of service benefits.
2. In the event of the death of an **insured**, we will pay:
  - (a) Any amounts payable, but unpaid prior to death, for medical expense benefits to the **insured's** estate.
  - (b) Death benefits for an **insured** who was:
    1. An **income producer**, to:
      - (a) The surviving spouse or **civil union** partner; or
      - (b) If there is no surviving spouse or **civil union** partner, the surviving children; or
      - (c) If there are no surviving children, the **insured's** estate.
    2. A provider of **essential services**, to the person who has incurred the expense of providing **essential services**.
  - (c) Funeral expense benefits to the **insured's** estate.

### PROOF OF HEALTH BENEFITS PLAN COVERAGE

If the Declarations and Schedule A indicates the Medical Expense Benefits as Secondary Coverage (PIP MED ONLY HEALTH PRIMARY and PIP FULL HEALTH PRIMARY) option applies, the **named insured** must provide proof that the **named insured** and any **relatives** are insured by health insurance coverage or benefits in a manner and to an extent approved by the New Jersey Department of Banking and Insurance.

### DELETION OF BENEFITS OTHER THAN MEDICAL EXPENSE BENEFITS

If the Declarations and Schedule A indicates the Deletion of Benefits Other than Medical Expense Benefits (PIP MED ONLY HEALTH PRIMARY and PIP MED ONLY PIP PRIMARY) option applies, we will pay personal injury protection benefits consisting of only medical expense benefits for the **named insured** or any **relative**.

### EMPLOYEE BENEFITS REIMBURSEMENT

If an **insured** fails to apply for workers' compensation benefits or disability benefits for which that **insured** is eligible, we may immediately apply to the provider of such benefits for reimbursement of any benefits we have paid under this coverage.

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**SECTION III - PHYSICAL DAMAGE COVERAGES**  
**Your Protection For Loss Or Damage To Your Auto**

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**DEFINITIONS**

The definitions of the terms **auto business**, **farm auto**, **non-owned auto**, **personal vehicle sharing**, **private passenger auto**, **relative**, **ride-sharing**, **temporary substitute auto**, **transportation network company**, **utility auto**, **you**, **your** and **war** under **Section I** apply to **Section III** also. Under this Section, the following special definitions apply:

1. **Actual cash value** is the replacement cost of the auto or property less **depreciation** and/or **betterment**.
2. **Betterment** is improvement of the auto or property to a value greater than its pre-loss condition.
3. **Collision** means **loss** caused by upset of the **owned auto** or **non-owned auto** or its collision with another object, including an attached vehicle.

**Losses** caused by the following are comprehensive **losses**:

- |                     |                                     |
|---------------------|-------------------------------------|
| a. Missiles;        | k. Water;                           |
| b. Falling objects; | l. Flood;                           |
| c. Fire;            | m. Malicious mischief;              |
| d. Lightning;       | n. Vandalism;                       |
| e. Theft;           | o. Riot;                            |
| f. Larceny;         | p. Civil commotion; or              |
| g. Explosion;       | q. Colliding with a bird or animal. |
| h. Earthquake;      |                                     |
| i. Windstorm;       |                                     |
| j. Hail;            |                                     |

4. **Custom parts or equipment** means paint, equipment, devices, accessories, enhancements, and changes, other than those which are original manufacturer installed, which:

- (a) Are permanently installed or attached; or
- (b) Alter the appearance or performance of a vehicle.

This includes any electronic equipment, antennas, and other devices used exclusively to send or receive audio, visual, or data signals, or to play back recorded media, other than those which are original manufacturer installed, that are permanently installed in the **owned auto**, using bolts or brackets, including slide-out brackets.

5. **Depreciation** means a decrease or loss in value to the auto or property because of use, disuse, physical wear and tear, age, outdatedness, or other causes.
6. **Diminution in value** means the actual or perceived loss in market or resale value which results from a direct and accidental loss.

7. **Insured** means:

- (a) Regarding the **owned auto**:
  - (i) **You** and **your relatives**;
  - (ii) A person or organization maintaining, using or having custody of the auto with **your** permission.
- (b) Regarding a **non-owned auto**: **you** and **your relatives**, using the auto, if the actual operation or use is with the permission or reasonably believed to be with the permission of the owner.

8. **Loss** means direct and accidental loss of or damage to:

- (a) The auto, including its equipment; or
- (b) Other insured property.

9. **Owned auto** means:

- (a) Any vehicle described in this policy for which a specific premium charge indicates there is coverage;
- (b) A **private passenger auto**, **farm auto**, **utility auto** or a **trailer**, ownership of which is acquired by **you** during the policy period or for which **you** enter into a lease during the policy period for a term of six months or more; if
  - (i) It replaces an **owned auto** as described in (a) above, or
  - (ii) We insure all **private passenger autos**, **farm autos**, **utility autos** and **trailers** owned or leased by **you** on the date of such acquisition and **you** request us to add it to the policy within 30 days afterward;
- (c) A **temporary substitute auto**.

10. **Trailer** means a trailer designed to be towed by a **private passenger auto** and not used as a home, residence, office, store, display or passenger trailer. **Trailer** does not mean a trailer with built-in sleeping facilities designed for recreational or camping use.

## LOSSES WE WILL PAY

### Comprehensive (Excluding Collision)

1. We will pay for each **loss**, less the applicable deductible, caused other than by **collision** to the **owned auto** or **non-owned auto**. This includes glass breakage.  
At the option of the **insured**, breakage of glass caused by **collision** may be paid under the Collision coverage, if included in the policy.
2. **Losses**, other than **collision**, arising out of a single occurrence shall be subject to no more than one deductible.

### Collision

1. We will pay for **collision loss** to the **owned auto** or **non-owned auto** for the amount of each **loss** less the applicable deductible.

### ADDITIONAL PAYMENTS WE WILL MAKE UNDER THE PHYSICAL DAMAGE COVERAGES

1. We will reimburse the **insured** for transportation expenses incurred during the period beginning 48 hours after a theft of the entire auto covered by Comprehensive coverage under this policy has been reported to us and the police.  
Reimbursement ends when the auto is returned to use or we pay the **loss**.  
Reimbursement will not exceed \$30 per day nor more than \$900 per **loss**.
2. We will pay general average and salvage charges for which the **insured** becomes legally liable when the auto is being transported.

### EXCLUSIONS

Section III does not apply:

1. To any vehicle:
  - (a) used to carry persons or property for compensation or a fee, including but not limited to the delivery of food or any other products; or
  - (b) while being used for **ride-sharing**.However, a vehicle used in an ordinary car pool is covered. An ordinary car pool is one where:
  - (i) An **insured** receives no payment for using a vehicle for a car pool ride; or
  - (ii) An **insured** receives only reimbursement for expenses for using a vehicle for a car pool ride, the reimbursement an **insured** receives for providing the car pool ride does not exceed the reasonable cost of gas and depreciation for the distance traveled, and the reimbursement received by an **insured** is not required to be reported for income tax purposes.
2. To **loss** due to **war**.
3. To a **non-owned auto** when used by the **insured** in the **auto business**.
4. To damage caused by and limited to wear and tear, freezing, mechanical or electrical breakdown or failure, unless that damage results from a covered theft.
5. To tires, when they alone are damaged by **collision**.
6. To **loss** due to radioactivity.
7. To **loss** to any tape, wire, record disc or other medium for use with a device designed for the recording and/or reproduction of sound.
8. To any radar or laser detector.
9. To **trailers** when used for business or commercial purposes with vehicles other than **private passenger autos**, **farm autos** or **utility autos**.
10. To **custom parts or equipment**, in excess of \$1,000, unless the existence of those **custom parts or equipment** has been previously reported to us and an endorsement to the policy has been added.
11. To any liability assumed under any contract or agreement.
12. To any **loss** or damage resulting from:
  - (a) The acquisition of a stolen vehicle;
  - (b) Any governmental, legal or other action to return a vehicle to its legal, equitable, or beneficial owner, or anyone claiming an ownership interest in the vehicle;
  - (c) Any confiscation, seizure or impoundment of a vehicle by governmental authorities; or
  - (d) The sale of an **owned auto**.
13. To the destruction, impoundment, confiscation or seizure of a vehicle by governmental or civil authorities due to its use by **you**, a **relative** or a permissive user of the vehicle in illegal activity.
14. To any **loss** caused by:
  - (a) a motor vehicle driven in or preparing for any racing, speed, or demolition contest, whether or not prearranged or organized; or
  - (b) any stunting or off-roading activity of any nature, whether or not prearranged or organized; or

(c) the operation or use of a motor vehicle on a track designed primarily for racing or high speed driving. This does not apply if the vehicle is being used in connection with an activity other than racing, high speed driving or any competitive driving.

15. To **loss** to any **non-owned auto** when used by **you** or any **relative** without a reasonable belief that **you** or that **relative** are entitled to do so.
16. To **loss** to **your owned auto** or any **non-owned auto** due to **diminution in value**.
17. For any person or organization while an **owned auto** is operated, maintained or used as part of personal vehicle sharing facilitated by a **personal vehicle sharing program**. This exclusion does not apply to **you** and **your relatives**, using a **temporary substitute auto**, if the actual operation or use is with the permission or reasonably believed to be with the permission of the owner.
18. To any vehicle, or series of vehicles, leased by **you** or a **relative** for less than six months unless the vehicle is described, and a premium charge is shown for the vehicle for this coverage, in the declarations of this policy.
19. To any vehicle, or series of vehicles, regularly rented by **you** or a **relative** on a daily, weekly or monthly basis unless the vehicle is described, and a premium charge is shown for the vehicle for this coverage, in the declarations of this policy.

#### LIMIT OF LIABILITY

The limit of our liability for **loss**:

1. Is the **actual cash value** of the property at the time of **loss**;
2. Will not exceed the prevailing competitive price to repair or replace the property at the time of **loss**, or any of its parts, including parts from non-original equipment manufacturers, with other of like kind and quality and will not include compensation for any **diminution in value** that is claimed to result from the **loss**. Although **you** have the right to choose any repair facility or location, the limit of liability for repair or replacement of such property is prevailing competitive price which is the price we can secure from a competent and conveniently located repair facility. At **your** request, we will identify a repair facility that will perform the repairs or replacement at the prevailing competitive price;
3. To a **trailer** not owned by **you** is \$500;
4. For **custom parts or equipment** is limited to the **actual cash value** of the **custom parts or equipment**, not to exceed the **actual cash value** of the vehicle. However, the most we will pay for **loss** to **custom parts or equipment** is \$1,000, unless the existence of those **custom parts or equipment** has been previously reported to us and an endorsement to the policy has been added.  
**Actual cash value** of property will be determined at the time of the **loss** and will include an adjustment for **depreciation** and/or **betterment** and for the physical condition of the property.

#### OTHER INSURANCE

If the **insured** has other insurance against a **loss** covered by **Section III**, we will not owe more than our pro-rata share of the total coverage available. Any insurance we provide for a vehicle **you** do not own shall be excess over any other collectible insurance.

#### CONDITIONS

The following conditions apply only to the Physical Damage coverages:

##### 1. NOTICE

As soon as possible after a **loss**, notice must be given to us or our authorized agent stating:

- (a) The identity of the **insured**;
- (b) A description of the auto or **trailer**;
- (c) The time, place and details of the **loss**; and
- (d) The names and addresses of any witnesses.

In case of theft, the **insured** must promptly notify the police.

In the case of theft of the entire vehicle, the **insured** must promptly notify the police that the vehicle was stolen. To be eligible as a covered **loss**, the police report must acknowledge and classify the report as theft of a motor vehicle. The **insured** must cooperate fully with the police investigation, with the claim investigation, and with the prosecution of any person(s) charged with theft, and with any civil suit brought by us against the person(s) responsible to recover for the **loss**.

##### 2. TWO OR MORE AUTOS

If this policy covers two or more autos or **trailers**, the limit of coverage and any deductible apply separately to each.

##### 3. ASSISTANCE AND COOPERATION OF THE INSURED

The **insured** will cooperate and assist us, if requested:

- (a) In the investigation of the **loss**;
- (b) In making settlements;
- (c) In the conduct of suits;
- (d) In enforcing any right of subrogation against any legally responsible person or organization;

- (e) At trials and hearings;
- (f) In securing and giving evidence; and
- (g) By obtaining the attendance of witnesses.

#### 4. ACTION AGAINST US

Suit will not lie against us unless the policy terms have been complied with and until 30 days after proof of loss is filed and the amount of **loss** is determined.

If we retain salvage, we have no duty to preserve or otherwise retain the salvage for any purpose, including as evidence for any civil or criminal proceeding. If **you** ask us immediately after a **loss** to preserve the salvage for inspection, we will do so for a period not to exceed 30 days. **You** may purchase the salvage from us if **you** wish.

#### 5. INSURED'S DUTIES IN EVENT OF LOSS

In the event of **loss** the **insured** will:

- (a) Protect the auto, whether or not the **loss** is covered by this policy. Further **loss** due to the **insured's** failure to protect the auto will not be covered. Reasonable expenses incurred for this protection will be paid by us.
- (b) File with us, within 91 days after **loss**, his sworn proof of loss, including all information we may reasonable require.
- (c) At our request, the **insured** will exhibit the damaged property.

#### 6. APPRAISAL

If we and the **insured** do not agree on the amount of **loss**, either may, within 60 days after proof of loss is filed, demand an appraisal of the **loss**. In that event, we and the **insured** will each will select a competent appraiser. The appraisers will select a competent and disinterested umpire. The appraisers will state separately the **actual cash value** and the amount of the **loss**. If they fail to agree, they will submit the dispute to the umpire. An award in writing of any two will determine the amount of **loss**. We and the **insured** will each pay his chosen appraiser and will bear equally the other expenses of the appraisal and umpire.

We will not waive our rights by any of our acts relating to appraisal.

#### 7. PAYMENT OF LOSS

We may at our option:

- (a) Pay for the **loss**; or
- (b) Repair or replace the damaged or stolen property.

At any time before the **loss** is paid or the property replaced, we may return any stolen property to **you** or to the address shown in the Declarations at our expense with payment for covered damage. We may take all or part of the property at the agreed or appraised value, but there will be no abandonment to us. We may settle claims for **loss** either with the **insured** or the owner of the property.

#### 8. NO BENEFIT TO BAILEE

This insurance does not apply directly or indirectly to the benefit of a carrier or other bailee for hire liable for the **loss** to the auto.

#### 9. SUBROGATION

When payment is made under this coverage, we will be subrogated to all the **insured's** rights of recovery against others. The **insured** will help us to enforce these rights. The **insured** will do nothing after **loss** to prejudice these rights.

This means we will have the right to sue for or otherwise recover the **loss** from anyone else who may be held responsible.

#### 10. MANDATORY INSPECTION

This provision applies in place of any conflicting policy provision.

A. We have the right to inspect any:

- 1. **Private passenger auto**; or
- 2. Pickup or van;

which **you** insure or intend to insure for Physical Damage Coverage under this policy.

B. We do not provide Physical Damage Coverage for any additional or replacement vehicle **you** acquire during the policy period until after **you**:

- 1. Notify us; and
- 2. Request coverage for that vehicle.

However, this provision does not apply to a replacement vehicle for the three-day period beginning on the date **you** acquire the replacement vehicle if:

- 1. **You** acquire the vehicle during the policy period; and
- 2. We provided Physical Damage Coverage on the vehicle **you** replaced for at least 12 months prior to the date of replacement.



For each of the following which falls within the three-day period, we will extend the period one day:

1. Saturday;
2. Sunday; or
3. New Jersey State holiday.

C. When we require an inspection, **you** must:

1. Cooperate; and
2. Make the vehicle available for inspection.

#### 11. ASSIGNMENT

With respect to Section III, Physical Damage Coverages, an assignment of interest under this policy will not bind us without our consent. Any nonconforming assignment shall be void and invalid. Moreover, the assignee of a nonconforming assignment shall acquire no rights under this contract and we shall not recognize any such assignment.

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### SECTION IV - UNINSURED/UNDERINSURED MOTORISTS COVERAGE

#### Protection For You and Your Passengers For Injuries Caused By Uninsured and Hit-And-Run Motor Vehicles

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#### DEFINITIONS

The definitions of Section I apply except the following special definitions.

1. **Bodily injury** means bodily injury, sickness, or disease, including death, caused by accident, sustained by **you**, **your relatives** or any other person **occupying** an **insured auto** with **your** consent. All claims for damages arising from **bodily injury** to a person from a single loss shall be considered one **bodily injury**.
2. **Hit-and-run motor vehicle** means a motor vehicle which causes an accident resulting in **bodily injury** to an **insured** or **property damage** provided:
  - (a) The owner or operator cannot be identified;
  - (b) The **insured** or someone on his behalf reports the accident within 24 hours, or as soon thereafter as practicable, to the nearest office of an authorized police authority;
  - (c) The **insured** or someone on his behalf files with us, within 30 days after requested, a statement under oath that the **insured** or his legal representative has a cause or causes of action arising out of the accident for damages against a person or persons whose identity cannot be determined and setting forth facts supporting the statement; and
  - (d) At our request, the **insured**, or his legal representative, makes the auto which the **insured** was **occupying** at the time of the accident available for our inspection.
3. **Insured** means:
  - (a) **You** and **your** spouse or **civil union** partner if a resident of the same household;
  - (b) **Your relative** if a resident of **your** household;
  - (c) Any other person while **occupying** an **owned auto**.
  - (d) Any person who is entitled to recover damages because of **bodily injury** or **property damage** sustained by an **insured** under (a), (b), (c) above.

If there is more than one **insured**, our limit of liability will not be increased.

4. **Insured auto** is an auto:
  - (a) Described in the Declarations and covered by the Bodily Injury and Property Damage Liability coverages of this policy;
  - (b) **Temporary substitute auto**; or
  - (c) Operated by **you** or **your** spouse if a resident of the same household.But the term **insured auto** does not include:
  - (a) An auto used to carry persons or property for compensation or a fee, including but not limited to the delivery of food or any other products. However, a vehicle used in an ordinary carpool on a ride sharing or cost sharing basis is covered;
  - (b) An auto being used without the owner's permission; or
  - (c) Under subparagraphs (b) and (c) above, an auto owned by or furnished for the regular use of an **insured**.
5. **Property damage** means injury to or destruction of:
  - (a) An **insured auto** owned by **you**;
  - (b) Any property in the **insured auto** owned by **you**, any **relative** or other person **occupying** the **insured auto**; or
  - (c) Any other property owned by the **insured** if located in New Jersey.
6. **Occupying** means in, upon, entering into, on, out, off or alighting from an auto.
7. **Relative** means a person related to **you** who resides in **your** household.

8. **State** includes the District of Columbia, the territories and possessions of the United States, and the Provinces of Canada.

9. **Underinsured motor vehicle** means the following:

(a) With respect to an **insured** who:

1. Is not the named insured under this policy; and
2. Is a named insured under one or more other policies providing similar coverage;

**underinsured motor vehicle** means a land motor vehicle or **trailer** of any type to which a liability bond or policy applies at the time of the accident but its limit for liability is less than the highest applicable limit of liability under any insurance providing coverage to that **insured** as a named insured.

(b) With respect to an **insured** who:

1. Is not the named insured under this policy or any other policy; and
2. Is insured as a spouse or **relative** under one or more other policies providing similar coverage;

**underinsured motor vehicle** means a land motor vehicle or **trailer** of any type to which a liability bond or policy applies at the time of the accident but its limit for liability is less than the highest applicable limit of liability under any insurance providing coverage to that **insured** as a spouse or **relative**.

(c) With respect to any other **insured** not described in paragraphs (a) or (b) above, **underinsured motor vehicle** means a land motor vehicle or **trailer** of any type to which a liability bond or policy applies at the time of the accident but its limit for liability is less than the limit of liability for this coverage.

However, **underinsured motor vehicle** does not include:

1. An **uninsured motor vehicle**.
2. Any vehicle or equipment owned or operated by a self-insurer under any applicable motor vehicle law.

Neither **uninsured motor vehicle** nor **underinsured motor vehicle** includes any vehicle or equipment:

1. Owned by or furnished or available for the regular use of **you** or any **relative**.
2. Owned by any governmental unit or agency.
3. Operated on rails or crawler treads.
4. Designed mainly for use off public roads while not on public roads.
5. While located for use as a residence or premises.

10. **Uninsured motor vehicle** means a land motor vehicle or **trailer** of any type:

(a) To which no liability bond or policy applies at the time of the accident.

(b) Which, with respect to damages for **bodily injury** only, is a **hit-and-run motor vehicle** whose operator or owner cannot be identified and which hits, or causes an accident resulting in **bodily injury** without hitting:

1. **You** or any **relative**;
2. A vehicle which **you** or any **relative** are **occupying**; or
3. **Your insured auto**.

(c) To which a liability bond or policy applies at the time of the accident but the bonding or insuring company:

1. Denies coverage; or
2. Is or becomes insolvent.

However, **uninsured motor vehicle** does not include:

1. An **underinsured motor vehicle**.
2. Any vehicle or equipment:
  - (a) Owned or operated by a self-insurer under any applicable motor vehicle law, except a self-insurer which is or becomes insolvent; or
  - (b) Insured under a basic automobile insurance policy issued in accordance with New Jersey law or regulation.

Neither **uninsured motor vehicle** nor **underinsured motor vehicle** includes any vehicle or equipment:

1. Owned by or furnished or available for the regular use of **you** or any **relative**.
2. Owned by any governmental unit or agency.
3. Operated on rails or crawler treads.
4. Designed mainly for use off public roads while not on public roads.
5. While located for use as a residence or premises.

## LOSSES WE PAY

We will pay damages for **bodily injury** and **property damage** caused by an accident which the **insured** is legally entitled to recover from the owner or operator of an **uninsured motor vehicle** or **underinsured motor vehicle** arising out of the ownership, maintenance or use of that vehicle.

The amount of the **insured's** recovery for these damages will be determined by agreement between the **insured** or his representative and us.

A dispute with respect to the total amount of damage or the extent of liability of the tortfeasor may, by mutual agreement, be submitted to arbitration. However, disputes regarding coverage under this section or threshold breach are not subject to arbitration.

The arbitration decision shall be binding unless, within 60 days of the arbitration decision, either party send notice via certified mail to the other party that the arbitration decision is rejected. If the arbitration decision is rejected by either party, the decision, award, finding and conclusion of the arbitrator will be null and void.

Subject to the above, either party shall have the right to a trial on all issues in a court of competent jurisdiction.

We will be obligated to pay no more than the applicable policy limit for this coverage regardless of whether an arbitration results in an award in excess of the applicable policy limits for this coverage as defined in the policy.

## EXCLUSIONS

**Section IV** does not apply:

1. To **bodily injury** to an **insured** if the **insured** or his legal representative has made a settlement of his claim which exhausts the applicable **bodily injury** or death limits of the liability insurance without our prior written consent unless:
  - (a) We are notified in writing by Certified Mail that a tentative agreement to settle for the liability limits of the owner or operator of the other vehicle has been reached;
  - (b) We did not make a payment equal to the tentative settlement amount to our **insured** within 30 days of our refusal to consent to the settlement offer; and
  - (c) We responded to the written notice of settlement within 60 days.
2. To **bodily injury** sustained by **you** or **your relatives** while **occupying**, or through being struck by, an **uninsured motor vehicle** or **underinsured motor vehicle** owned by **you** or **your relatives**.
3. To the owner of a motor vehicle:
  - (a) Insured under a basic automobile insurance policy issued in accordance with New Jersey law or regulation; or
  - (b) Required to be insured in accordance with New Jersey law or regulation, but not insured for this coverage or any similar coverage.

This includes a **trailer** of any type used with a vehicle described in (a) and (b) above.

However, this exclusion does not apply to **you** unless **you** are **occupying**, at the time of the accident, a motor vehicle described in (a) and (b) above.
4. To an **insured's** property damaged while in, or through being struck by an **uninsured motor vehicle** or **underinsured motor vehicle** owned by an **insured**.
5. To **bodily injury** sustained by an **insured** while **occupying** a motor vehicle owned by an **insured** and not described in the Declarations and not covered by the Bodily Injury and Property Damage liability coverages of this policy.
6. To **bodily injury** sustained by an **insured** while **occupying** a motor vehicle not owned by, and furnished for the regular use of the **insured** when involved in an accident with an **underinsured motor vehicle**.
7. To any workers' or workmen's compensation insurer, self-insurer or disability benefits insurer.
8. To the United States of America or any of its agencies.
9. To the first \$500 of **property damage** to the property of each **insured** which is damaged in any one accident.
10. To any insurer either directly or indirectly.
11. To punitive or exemplary damages.
12. To any liability assumed under any contract or agreement.
13. To damage caused by an **insured's**:
  - (a) participation in or preparation for any racing, speed or demolition contest, whether or not prearranged or organized; or
  - (b) participation in any stunting or off-roading activity of any nature, whether or not prearranged or organized; or
  - (c) operation or use of a motor vehicle on a track designed primarily for racing or high speed driving. This does not apply if the vehicle is being used in connection with an activity other than racing, high speed driving or any competitive driving.

14. To any person or organization while an **owned auto** is operated, maintained or used as part of personal vehicle sharing facilitated by a **personal vehicle sharing program**.  
This exclusion does not apply to:  
(a) **you** and **your** spouse or **civil union** partner if a resident of the same household;  
(b) **your relative** if a resident of **your** household;  
(c) Any other person  
while **occupying** a **temporary substitute auto**.
15. To **bodily injury** or **property damage** for any person or organization while any vehicle:  
(a) is being used to carry persons or property for compensation or a fee, including but not limited to the delivery of food or any other products; or  
(b) is being used for **ride-sharing**.  
However, a vehicle used in an ordinary car pool is covered. An ordinary car pool is one where:  
(i) An **insured** receives no payment for using a vehicle for a car pool ride; or  
(ii) An **insured** receives only reimbursement for expenses for using a vehicle for a car pool ride, the reimbursement an **insured** receives for providing the car pool ride does not exceed the reasonable cost of gas and depreciation for the distance traveled, and the reimbursement received by an **insured** is not required to be reported for income tax purposes.  
This exclusion does not apply to **you** or any **relative** while a passenger and not operating the motor vehicle.
16. To **bodily injury** and **property damage** sustained by any **insured** while operating or **occupying** any vehicle leased by **you** or a **relative** for less than six months and which is not insured under the liability coverage of this policy.
17. To **bodily injury** and **property damage** sustained by any **insured** while operating or **occupying** any vehicle regularly rented by **you** or a **relative** on a daily, weekly or monthly basis and which is not insured under the liability coverage of this policy.
18. To **bodily injury** and **property damage** to any **insured** arising out of:  
a. any automobile rented or leased by **you** or a **relative** for the purpose of providing **ride-sharing** services. An automobile is considered to have been rented or leased for the purpose of providing **ride-sharing** services, whether actually used for **ride-sharing** or not, if the rental or lease agreement specifically allows the automobile to be used for **ride-sharing** with a **transportation network company**; or  
b. any automobile rented or leased by **you** or a **relative** which is registered for use for **ride-sharing** with a **transportation network company**; or  
c. any automobile rented or leased by **you** or a **relative** which is approved for use for **ride-sharing** by a **transportation network company**; or  
d. any automobile rented or leased by **you** or a **relative** which displays an exterior marking that identifies the automobile as a vehicle for hire.  
This exclusion does not apply if the rented or leased vehicle is described, and a premium charge is shown for the vehicle for this coverage, in the declarations of this policy.

## PERSONS INSURED

This coverage applies to the following persons as **insureds**:

1. **You** and **your relatives**;
2. Any other person **occupying** an **insured auto** with **your** consent;
3. Any other person entitled to recover damages because of **bodily injury** to a person described in **1.** or **2.** above.

## COVERAGE LIMITS

Regardless of the number of **insureds**, autos or **trailers** to which this policy applies:

1. The limit of liability for Uninsured Motorists coverage stated in the Declarations as applicable to "each person" is the limit of our liability for all damages, including those for care or loss of services, due to **bodily injury** sustained by one person as the result of one accident.
2. The limit of liability for Uninsured Motorists coverage stated in the Declarations as applicable to "each occurrence" is, subject to the above provision respecting each person, the total limit of our liability for all such damages including damages for care and loss of services, due to **bodily injury** sustained by two or more persons as the result of one accident.
3. The limit of Uninsured Motorists Property Damage Liability coverage stated in the Declarations is the total limit of our liability for all such damages, including damages for loss of use of an auto owned by **you**, sustained in any one accident.

4. When coverage is afforded to two or more autos under this policy, the limits of liability shall apply separately to each auto as stated in the Declarations. But these limits may not be combined so as to increase the stated coverage for the auto involved in the accident.  
If separate policies with us are in effect for **you** or any person in **your** household, they may not be combined to increase the limit of our liability for a loss.  
The amount payable under this coverage will be reduced by all amounts:  
(a) Paid by or for all persons or organizations liable for the injury;  
(b) Paid under the Bodily Injury and Property Damage coverages of this policy;  
(c) Recovered under any workers' or workmen's compensation law, disability benefits law or any similar law, exclusive of non-occupational disability benefits; or  
(d) Paid under a property insurance policy.
5. Any payment made under this coverage shall reduce any amount the **insured** is entitled to receive from the Bodily Injury or Property Damage coverages of this policy.
6. Any amounts paid under the Physical Damage coverages of this policy are not covered under this insurance.
7. We will not be obligated to make any payment under this coverage until all **bodily injury** and **property damage** insurance policies available to the **underinsured motor vehicle** and applicable to the accident have been exhausted by the payment of judgments or settlements.

## CONDITIONS

The following conditions apply to the Uninsured/Underinsured Motorists coverage:

### 1. NOTICE

As soon as possible after an accident, notice must be given to us or our authorized agent stating:

- (a) The identity of the **insured**;
- (b) The time, place and details of the accident; and
- (c) The names and addresses of the injured, and of any witnesses.

If the **insured** or his legal representative files suit before we make a settlement under this coverage, he must notify us of the suit. The notice shall be detailed to enable us to secure whatever information we may require to protect our interest.

### 2. PROOF OF CLAIM

As soon as possible, the **insured**, or other person making claim, must give us written proof of claim, under oath if required. This will include details of the nature and extent of injuries, treatment and other facts which may affect the amount payable.

Proof of claim must be made on forms furnished by us unless we have not furnished these forms within 15 days after receiving notice of claim.

The injured person will submit to physical examination at our expense, by doctors chosen by us, as we may reasonably require.

The injured person, or in the event of his incapacity or death, his legal representative, must, at our request, authorize us to obtain medical reports and copies of records.

Any person making a claim for damage to property must, within 60 days from the date of accident, file with us a sworn proof of loss. This will be a statement explaining the ownership of the property, its value, any liens or mortgages on the property, and the time, place and circumstances of the accident. Any other insurance on the property must be disclosed to us. The damaged property must be made available for our inspection upon our request.

### 3. ASSISTANCE AND COOPERATION OF THE INSURED

After we receive notice of a claim, we may require the **insured** to take any action necessary to secure his recovery rights against any person or organization that may be legally responsible for the accident. We may require the **insured** to make that person or organization a defendant in any action against us.

### 4. OTHER INSURANCE

#### (a) BODILY INJURY

When an **insured** occupies an auto or other motor vehicle not described in this policy, this insurance is excess over any other similar insurance available to the **insured**. The insurance which applies to the **occupied** auto or other motor vehicle is primary.

Except as provided above, if the **insured** has other similar insurance available to him and applicable to the accident, the damages will be deemed not to exceed the higher of the applicable limits of liability of this insurance and the other insurance. If the **insured** has other insurance against a loss covered by the Uninsured Motorists provisions of this policy, we will not be liable for more than our pro-rata share of the total coverage available.

#### (b) PROPERTY DAMAGE

This insurance is excess over any other insurance of any kind applicable to **property damage**. We will pay under this coverage only the amount by which the limit for this coverage is greater than the other insurance available.

## 5. TRUST AGREEMENT

Whenever we make a payment under this coverage and have not waived our rights by failing, within 60 days of receipt of any written notice of a tentative agreement to settle for the liability limits, to make a payment equal to the tentative settlement amount:

- (a) We will be entitled to repayment out of any settlement or judgment the **insured** recovers from any person or organization legally responsible for the **bodily injury or property damage**.
- (b) The **insured** will hold in trust for our benefit all rights of recovery which he may have against any legally responsible person or organization. He will do whatever is necessary to secure all rights of recovery and will do nothing after the loss to prejudice these rights.
- (c) At our written request, the **insured**, in his own name, will take through our designated representative appropriate actions necessary to recover payment for damages from the legally responsible person or organization. The **insured** will pay us out of the recovery for our expenses, costs and attorney's fees.
- (d) The **insured** will execute and furnish us with any needed documents to secure his and our rights and obligations.

## 6. PAYMENT OF LOSS

Any amount due is payable:

- (a) To the **insured** or his authorized representative;
- (b) If the **insured** is a minor, to his parent or guardian; or
- (c) If the **insured** is deceased, to his surviving spouse or **civil union** partner; otherwise
- (d) To a person authorized by law to receive the payment; or to a person legally entitled to recover payment for the damages.

We may, at our option, pay any amount due in accordance with (d) above.

## 7. ACTION AGAINST US

Suit will not lie against us unless the **insured** and his legal representative have fully complied with all the policy terms.

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## SECTION V - GENERAL CONDITIONS

### These Conditions Apply To All Coverages In This Policy

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## DEFINITIONS

The definitions of the terms under Section I also apply to Section V.

### 1. TERRITORY

This policy applies only to accidents, occurrences or losses during the policy period within the United States of America, its territories or possessions, or Canada or when the auto is being transported between ports thereof.

### 2. POLICY PERIOD

Unless otherwise cancelled, this policy will expire as shown in the declarations. But, it may be continued by our offer to renew and **your** acceptance by payment of the required renewal premium prior to the expiration date. Each period will begin and expire as stated in the declarations.

### 3. PREMIUM

When **you** dispose of, acquire ownership of, or replace a **private passenger auto, farm auto or utility auto**, any necessary premium adjustment will be made as of the date of the change and in accordance with our manuals.

### 4. CHANGES

The terms and provisions of this policy cannot be waived or changed, except by an amendment or endorsement issued to form a part of this policy.

We may revise this policy during its term to provide more coverage without an increase in premium. If we do so, **your** policy will automatically include the broader coverage when effective in **your** state. The premium for each auto is based on the information we have in **your** file. **You** agree:

- a. That we may adjust **your** policy premiums during the policy term if any of the information on which the premiums are based is incorrect, incomplete or changed.
- b. That **you** will cooperate with us in determining if this information is correct and complete.
- c. That **you** will notify us of any changes in this information.

Any calculation or recalculation of **your** premium or changes in **your** coverage will be based on the rules, rates and forms on file, if required, for our use in **your** state.

### 5. DISPOSAL OF VEHICLE

If **you** relinquish possession of a leased vehicle or if **you** sell or relinquish ownership of an **owned auto**, any coverage provided by this policy for that vehicle will terminate on the date **you** do so.

## 6. ASSIGNMENT

**You** rights and duties under this policy may not be assigned without our written consent.

If **you** die, this policy will cover:

- a. **Your** surviving spouse or **civil union** partner, if covered under the policy prior to **your** death, and until the expiration of the policy term;
- b. The executor or administrator of **your** estate, but only while operating an **owned auto** and while acting within the scope of his duties;
- c. Any person having proper temporary custody of and operating the **owned auto**, as an **insured**, until the appointment and qualification of the executor or administrator of **your** estate.

## 7. CANCELLATION BY THE INSURED

**You** may cancel this policy by providing notice to us stating when, after the notice, cancellation will be effective.

If this policy is cancelled, **you** may be entitled to a premium refund. The premium refund, if any, will be computed according to our manuals.

## 8. CANCELLATION BY US

We will continue this policy unless we mail to **you**, at the address shown in this policy, written notice stating when our cancellation will be effective. This notice will be at least 15 days, but not more than 30 days prior to the cancellation date if it's due to nonpayment of premium or at least 20 days prior to the cancellation date in all other cases.

A. This will occur if any of the following conditions exist:

1. Within 60 days of issuance, **you** are no longer eligible for this policy as a result of failing to meet the requirements set in our Acceptance criteria in accordance with N.J.A.C. 11:3-8.10 (5).
2. After this policy has been in effect for 60 days, it is determined to no longer be eligible for continuation due to any of the following reasons:
  - a. Nonpayment of premium;
  - b. The driver's license or motor vehicle registration of the named insured has been suspended or revoked during the policy period;
  - c. The driver's license or motor vehicle registration of another named insured or person insured under the policy who either resides in the same household or customarily operates a motor vehicle insured under the policy has been suspended or revoked during the policy term for one or more of the following reasons:
    - i. Conviction of operating a motor vehicle under the influence of alcohol or drugs;
    - ii. Conviction of refusal to submit to a chemical test;
    - iii. Conviction of vehicular homicide;
    - iv. Conviction of operating a motor vehicle while driving privilege is suspended, except for convictions under N.J.S.A. 39:3-40i;
    - v. Conviction of operating a motor vehicle without liability insurance;
    - vi. Conviction of misrepresentation of insurance coverage;
    - vii. Accumulation of motor vehicle penalty points pursuant to N.J.S.A. 39:5-30.5;
    - viii. By a court upon conviction of one of the following motor vehicle violations: racing on a highway; failure to pass to right of vehicle proceeding in opposite direction; tailgating; reckless driving; exceeding a speed limit by 30 MPH or more; improperly passing a school bus or leaving the scene of an accident in which personal injury occurred; or
    - ix. Where evidence exists that the suspended or revoked operator has been driving the vehicle during the period of suspension or revocation.
  - d. The named insured knowingly provided materially false or misleading information in connection with any application for insurance, renewal of insurance, or in connection with the filing of a claim for benefits under an insurance policy.

B. The mailing or delivery of the above notice will be sufficient proof of notice. The policy will cease to be in effect as of the date and hour stated in the notice. If this policy is cancelled, **you** may be entitled to a premium refund. The premium refund, if any, will be computed according to our manuals. Payment or tender of unearned premium is not a condition of cancellation.

## 9. NON-RENEWAL

We will mail to **you**, at the address shown in this policy, written notice of our refusal to renew. This notice will be at least 60 days and not more than 90 days prior to the expiration date. The mailing or delivery of which will be sufficient proof of notice.

- a. We may non-renew **your** policy if any of the following conditions exist:
  1. **You** are no longer eligible for this policy as a result of failing to meet the requirements set in our Acceptance criteria in accordance with N.J.A.C. 11:3-8.5 (c);
  2. In the five years immediately preceding notice of nonrenewal, **you** or any driver insured under this policy had at least two of the following in any combination:
    - a. An at-fault accident;
    - b. A moving violation for which four or more insurance eligibility points were assessed; or
    - c. A failure to maintain, without lapse, coverage mandated by the New Jersey Automobile Reparation Reform Act.
  3. **You** provided false or misleading information in connection with any application for insurance, renewal of insurance or claim for benefits under this policy;
- b. This policy expires without notice due to:
  1. **Your** nonpayment of any premium we may require to renew this policy.
  2. **You** informing us or our agent that **you** wish the policy to be cancelled or not renewed.
  3. **Your** non-acceptance of our offer to renew.

## 10. OTHER INSURANCE

If other insurance is obtained on **your owned auto**, any similar insurance afforded under this policy for that auto will terminate on the effective date of the other insurance.

If **you** relinquish possession of a leased vehicle or if **you** sell or relinquish ownership of an **owned auto**, any coverage provided by this policy will terminate on the date **you** do so.

## 11. DIVIDEND PROVISION

**You** may be entitled to share in a distribution of the surplus of the company as determined by its Board of Directors from time to time.

## 12. DECLARATIONS

By accepting this policy, **you** agree that:

- a. The statements in **your** application and in the Declarations are your agreements and representations;
- b. This policy is issued in reliance upon the truth of these representations; and
- c. This policy, along with the application and Declaration sheet, embodies all agreements relating to this insurance. The terms of this policy cannot be changed orally.

## 13. FRAUD AND MISREPRESENTATION

Coverage is not provided to any person who knowingly conceals or misrepresents any material fact or circumstance relating to this insurance:

- a. At the time application is made; or
- b. At anytime during the policy period; or
- c. In connection with the presentation or settlement of a claim.

## 14. EXAMINATION UNDER OATH

The **insured**, or any other person seeking coverage under this policy, must submit to examination under oath by any person named by us when and as often as we may require.

## 15. AUTHORIZATIONS

The **insured** will provide the company with written authorization to release information if requested.

## 16. TERMS OF POLICY CONFORMED TO STATUTES

Any terms of this policy in conflict with the statutes of New Jersey are amended to conform to those statutes.

## 17. CHOICE OF LAW

The policy and any amendment(s) and endorsement(s) are to be interpreted pursuant to the laws of the state of New Jersey.



## 18. LIMITATION ON LAWSUIT OPTION

**You** and any **relatives**, who are not named insureds under another policy, may not maintain a suit for tort liability for non-economic loss for an accident arising out of the maintenance, operation, or use, including loading or unloading, of an auto to which N.J.S.A. Section 39:6A-8.1 applies, unless **you** or such **relative** has sustained a **bodily injury** that results in death; dismemberment; significant disfigurement or significant scarring; displaced fractures; loss of a fetus; or a permanent injury within a reasonable degree of medical probability, other than scarring or disfigurement. This limitation applies if **you** have not selected the Full Tort Option under the policy.

## 19. UNDERWRITING CRITERIA

Coverage is not provided for any person for any vehicle which does not meet our underwriting criteria for the types and uses of vehicles insurable under our **FAMILY AUTOMOBILE INSURANCE POLICY** in the state of New Jersey.

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### SECTION VI - AMENDMENTS AND ENDORSEMENTS SPECIAL ENDORSEMENT - UNITED STATES GOVERNMENT EMPLOYEES

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#### SPECIAL ENDORSEMENT UNITED STATES GOVERNMENT EMPLOYEES

- A.** Under the Property Damage Coverage of **Section I**, we provide coverage to United States Government employees, civilian or military, using:
1. Motor vehicles owned or leased by the United States Government or any of its Agencies, or
  2. Rented motor vehicles used for United States Government business,
- when such use is with the permission of the United States Government. Subject to the limits described in paragraph **B.** below, we will pay sums **you** are legally obligated to pay for damage to these vehicles.
- B.** The following limits apply to this coverage:
1. A \$100 deductible applies to each occurrence.
  2. For vehicles described in **A.1.** above, our liability shall not exceed the lesser of the following:
    - a. The **actual cash value** of the property at the time of the occurrence; or
    - b. The cost to repair or replace the property, or any of its parts with other of like kind and quality; or
    - c. Two months basic pay of the **insured**; or
    - d. The limit of Property Damage Liability coverage stated in the Declarations.
  3. For vehicles described in **A.2.** above, our liability shall not exceed the lesser of the following:
    - a. The **actual cash value** of the property at the time of the occurrence; or
    - b. The cost to repair or replace the property, or any of its parts with other of like kind and quality; or
    - c. The limit of Property Damage Liability coverage stated in the Declarations.

This insurance is excess over other valid and collectible insurance.